Brendan Ngwa Nforbi
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

Plaintiff In Pro Per

FILED
SUPERIOR COURT SAN JOAQUIN
2026 MAY 11 A 10:22
STEPHANIE BOWER, CLERK
BY _____ DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI,

Plaintiff,

v.

DIAMOND TRUCK SALES, INC., a California corporation; ALPINE TRUCK SALES, INC., a California corporation (sued individually and as the successor in interest, mere continuation, and/or alter ego of Diamond Truck Sales, Inc.); and DOES 1 through 20, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001094

FIRST AMENDED COMPLAINT FOR:

(1) FRAUDULENT CONCEALMENT;
(2) INTENTIONAL MISREPRESENTATION;
(3) NEGLIGENT MISREPRESENTATION;
(4) BREACH OF CONTRACT;
(5) BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY (Cal. Comm. Code § 2314);
(6) VIOLATION OF UNFAIR COMPETITION LAW (Bus. & Prof. Code § 17200);
(7) RESCISSION AND RESTITUTION;
(8) DECLARATORY RELIEF

[Successor and alter-ego liability alleged against Alpine Truck Sales, Inc.]

DEMAND FOR JURY TRIAL

[Filed pursuant to Code Civ. Proc. § 472(a) as a matter of right, before responsive pleading]

Plaintiff Brendan Ngwa Nforbi ("Plaintiff") alleges as follows against Defendants Diamond Truck Sales, Inc. ("Diamond"), Alpine Truck Sales, Inc. ("Alpine") (sued individually and as the successor in interest, mere continuation, and/or alter ego of Diamond), and Does 1 through 20 (collectively, "Defendants"):

I. INTRODUCTION

1. This action arises from Diamond's knowing sale to Plaintiff of a 2014 Volvo VNL commercial diesel semi-truck (the "Truck") that Diamond knew, or had been specifically informed by the prior owner, suffered from a material defect in its Diesel Exhaust Fluid ("DEF") and Selective Catalytic Reduction ("SCR") emissions systems, rendering the Truck non-compliant with California emissions law and unfit and unsafe for the lawful highway operation for which it was sold.

2. Diamond is a sophisticated, multi-state commercial truck dealer with operations in California, South Carolina, and Texas. Diamond is a licensed California vehicle dealer subject to the California Vehicle Code, the Health and Safety Code, the regulations of the California Air Resources Board ("CARB"), and the duty to disclose material defects affecting fitness, safety, and regulatory compliance to its retail customers.

3. During the pendency of this action, and after Plaintiff caused the original Summons and Complaint to be tendered to the Stanislaus County Sheriff for personal service on Diamond's previously-designated agent for service of process, Plaintiff discovered that Diamond is undergoing or has undergone a corporate rebranding to "Alpine Truck Sales, Inc.," with a different person now publicly identified as the agent for service of process. Alpine continues Diamond's identical commercial-truck-sales business from the identical four physical locations historically associated with Diamond, with substantially the same family ownership, the same management, and the same telephone, web, and contact infrastructure. As alleged below, Alpine is liable on each cause of action herein on independent theories of (a) name change of the same corporate entity, (b) successor liability by mere continuation and/or de facto merger, (c) express or implied assumption of liabilities, (d) alter ego, and (e) fraudulent transfer designed to insulate Diamond's assets from this and similar claims.

4. Plaintiff, by contrast, is an individual commercial driver who relied entirely on Diamond's superior position, regulatory licensure, and statutory and common-law duties of disclosure when he purchased the Truck for use in his commercial freight operations centered in California. Plaintiff would not have purchased the Truck -- and would not have paid the price he paid, on the terms he accepted -- had Diamond disclosed the defect, the prior owner's pre-sale notice to Diamond, the regulatory non-compliance, or the enforcement-agency status alleged below.

5. Within a short time after purchase, while Plaintiff was operating the Truck under a Lease-On Owner Operator Agreement on a commercial route, the Truck experienced exactly the failure mode characteristic of the concealed defect: it entered engine derate ("limp mode"), emitted excessive black smoke, and lost the ability to exceed approximately 35 miles per hour, rendering it commercially useless and unsafe for highway operation. Plaintiff has suffered tens of thousands of dollars in direct out-of-pocket losses and continues to suffer mounting consequential losses including lost commercial freight income.

6. Plaintiff seeks rescission of the transaction, restitution of all consideration paid, compensatory and consequential damages, punitive damages, restitution and injunctive relief under the Unfair Competition Law, declaratory relief, costs, and prejudgment interest, jointly and severally against Diamond and Alpine.

II. PARTIES

7. Plaintiff Brendan Ngwa Nforbi is, and at all times relevant hereto was, an individual residing in Stockton, San Joaquin County, California.

8. Defendant Diamond Truck Sales, Inc. ("Diamond") is, and at all times relevant hereto

was, a California corporation engaged in the business of selling commercial trucks, with locations including 480 Peachoid Road, Gaffney, South Carolina 29341; 1201 South Soderquist Road, Turlock, California 95380; 7156 Goldenstate Highway, Bakersfield, California 93308; and 5201 Bridge Street, Fort Worth, Texas 76103. Diamond is and was at all relevant times a licensed California motor vehicle dealer subject to the California Vehicle Code, the California Health and Safety Code, and the regulations of CARB.

9. Defendant Alpine Truck Sales, Inc. ("Alpine") is, on information and belief, a California corporation engaged in the business of selling commercial trucks. Alpine operates from the same four physical locations historically associated with Diamond -- Turlock, Bakersfield, Fort Worth, and Gaffney -- and continues Diamond's identical commercial-truck-sales business with substantially the same management, ownership, employees, telephone numbers, customer goodwill, and online presence. On information and belief, Alpine's currently designated agent for service of process is Sheran Osmani, a member of the same Osmani family that controls Diamond.

10. **Liability of Alpine -- alternative theories.** Plaintiff is informed and believes, and on that basis alleges, that Alpine is liable for each and every claim asserted herein against Diamond, on each of the following independent theories, pleaded in the alternative:

(a) **Same entity / name change.** Diamond Truck Sales, Inc. and Alpine Truck Sales, Inc. are one and the same California corporate entity, with the entity having amended its articles of incorporation or otherwise changed its name from "Diamond Truck Sales, Inc." to "Alpine Truck Sales, Inc." Pursuant to Corporations Code sections 207 and 900 et seq., a corporate name change does not extinguish the corporation's pre-existing liabilities;

(b) **Mere continuation.** Alpine is a "mere continuation" of Diamond, in that

Alpine continues Diamond's identical business operations from the identical four physical locations, with substantially the same ownership, management, employees, customers, inventory, telephone numbers, and goodwill, and with no apparent payment of fair, arms-length consideration in connection with any asset transfer (See *Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28; *Cleveland v. Johnson* (2012) 209 Cal.App.4th 1315, 1326-1334);

(c) **De facto merger.** The transition from Diamond to Alpine constituted a de facto merger, in that there was a continuity of ownership, management, personnel, and business operations; an assumption by Alpine of the liabilities ordinarily necessary for the uninterrupted continuation of normal business operations; a cessation of ordinary business operations by Diamond; and a continuation of Diamond's business by Alpine (see *Marks v. Minnesota Mining & Mfg. Co.* (1986) 187 Cal.App.3d 1429, 1436);

(d) **Express or implied assumption.** Alpine has expressly or impliedly assumed Diamond's liabilities, including by holding itself out to Diamond's customers, the public, regulators, and online platforms as the continuation of Diamond at the same locations and under the continuing direction of the same controlling family;

(e) **Fraudulent transfer / Uniform Voidable Transactions Act.** To the extent the rebrand was accompanied by any transfer of Diamond's assets, goodwill, customer relationships, or business opportunities to Alpine without receipt by Diamond of reasonably equivalent value in exchange, with actual intent to hinder, delay, or defraud Diamond's present and future creditors, including Plaintiff, such transfer is voidable and Alpine is liable to the extent of the transferred property under Civil Code section 3439 et seq. The contemporaneous timing of the rebrand with the pendency of this action is, on information and belief, evidence of such intent (see Civ. Code § 3439.04, subd. (b)); and

(f) **Alter ego.** Alpine is the alter ego of Diamond and of the natural-person

principals controlling both entities (members of the Osmani family, including without limitation Saliman Osmani, Sheran Osmani, and Abdul Wahid Osmani), in that there is such unity of interest and ownership that the separate corporate personalities of Diamond and Alpine do not in reality exist, and adherence to the fiction of separate corporate existence would, under the circumstances, sanction fraud or promote injustice (see *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538-539; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 300). The bases for this allegation include: (i) the substantial overlap of management and ownership between Diamond and Alpine; (ii) shared physical locations; (iii) shared phone numbers and other contact information; (iv) the absence of any apparent arms-length transaction or fair-value consideration in connection with the transition; (v) the undercapitalization of Diamond at the relevant times, on information and belief; and (vi) the timing of the rebrand contemporaneous with this lawsuit.

11. The true names and capacities of Defendants sued as Does 1 through 20 are unknown to Plaintiff at this time, who therefore sues said Defendants by fictitious names. Plaintiff will amend this Complaint to show their true names and capacities when ascertained. Plaintiff is informed and believes, and on that basis alleges, that each fictitiously named Defendant is legally responsible for the events and damages alleged herein, including without limitation by acting as agents, employees, officers, directors, managing agents, joint venturers, alter egos, successors, or co-conspirators of Diamond and/or Alpine.

12. Plaintiff is informed and believes, and on that basis alleges, that at all relevant times each Defendant was the agent, employee, partner, joint venturer, co-conspirator, alter ego, principal, or representative of each of the other Defendants and was acting within the course and scope of such relationship, with the actual or apparent authority of each other, and with the knowledge, consent, ratification, or authorization of each other.

III. JURISDICTION AND VENUE

13. This Court has subject matter jurisdiction over this action pursuant to Code of Civil Procedure section 410.10. The amount in controversy exceeds $25,000, exclusive of interest and costs.

14. This Court has personal jurisdiction over Diamond and Alpine because each is a California corporation that maintains its principal place of business or significant places of business in California, transacts business in California, has continuous and systematic contacts with California, and the conduct giving rise to this action occurred within California.

15. Venue is proper in San Joaquin County under Code of Civil Procedure sections 395 and 395.5 because: (a) Plaintiff resides in this County; (b) the Truck was titled, registered, and garaged in this County; (c) Plaintiff's injuries occurred in this County; (d) a substantial portion of the events giving rise to the claims occurred or had effects in this County, including the notarization and execution of the Power of Attorney delivered to Diamond in connection with DMV titling; and (e) each Defendant conducts business in California.

IV. FACTUAL ALLEGATIONS

A. The Purchase Transaction

16. On or about April 4, 2023, Plaintiff purchased the Truck -- a 2014 Volvo VNL diesel semi-truck, VIN 4V4NC9EH6EN142206 -- from Diamond for use in commercial freight operations centered in California.

17. The transaction was documented by, among other writings: (a) a Retail Buyer's Order reflecting a cash price of $26,900.00 and total charges of $27,092.75; (b) a GAP Addendum

reflecting a $1,895.00 GAP enrollment charge; (c) a notarized Power of Attorney executed by Plaintiff in San Joaquin County, California, authorizing Diamond and its employees to act on Plaintiff's behalf with the California Department of Motor Vehicles for purposes of titling and registration of the Truck; and (d) related sales, financing, and registration paperwork prepared, presented, and processed by Diamond's employees and agents (collectively with the Retail Buyer's Order, the "Sale Documents"). True and correct copies of the principal Sale Documents are within Diamond's and Alpine's exclusive possession or control and will be produced and incorporated through discovery and amendment.

18. Plaintiff paid a deposit of $12,345.10 to Diamond, with the remaining balance financed through a third-party lender selected, arranged, or facilitated by Diamond in connection with the Truck's sale.

19. Plaintiff also paid DMV and registration fees totaling $3,442.00 in connection with titling and registering the Truck for lawful operation in California.

20. At the time of sale, Diamond knew or in the exercise of reasonable care should have known that Plaintiff was purchasing the Truck for commercial freight operation in California, where compliance with California emissions law is mandatory for the lawful operation of heavy-duty diesel vehicles. Plaintiff's California address, the California venue of the notarized Power of Attorney, the California titling and registration paperwork prepared by Diamond, and Plaintiff's status as a California-based commercial driver each made Plaintiff's intended California operation manifest to Diamond at the time of sale.

B. The Material Concealed Facts

21. At the time of sale, the Truck suffered from a serious defect in its DEF and SCR emissions systems (the "Defect"). The Defect rendered the Truck non-compliant with California

emissions law applicable to heavy-duty diesel vehicles, and predisposed the Truck to enter engine derate ("limp mode"), emit excessive black smoke, lose power, and become incapable of safe highway operation.

22. The Defect rendered the Truck non-compliant with, among other authorities: (a) California Health and Safety Code section 43000 et seq.; (b) California Code of Regulations, title 13, section 2025 (Truck and Bus Regulation); (c) California Vehicle Code section 24007 (dealer duty to ensure vehicle complies with applicable equipment, emissions, and safety standards at delivery); (d) California Vehicle Code section 27156 (prohibitions concerning emissions devices); and (e) the Federal Clean Air Act, 42 U.S.C. § 7401 et seq.

23. Plaintiff is informed and believes, and on that basis alleges, that prior to Diamond's resale of the Truck to Plaintiff, the prior owner or operator of the Truck (or such party's agents) provided Diamond with written and/or verbal notice of the Defect, including notice of the DEF/SCR system failure, the engine derate condition, and the resulting non-compliance and unfitness of the Truck for lawful highway operation. This allegation is made on information and belief, the basis of which includes: (a) the nature, severity, and characteristic failure pattern of the Defect, which matured into limp mode and 35-mile-per-hour incapacity within a short period after Plaintiff's purchase, demonstrating the Defect's pre-sale presence and detectability; (b) the standard practice of commercial owner-operators and prior fleet owners to disclose known DEF/SCR failures when transferring trucks to dealers; (c) Diamond's status as a sophisticated commercial dealer with inspection, intake, and trade-in protocols that develop information from prior owners; and (d) Plaintiff's investigation through vehicle history records and regulatory inquiries described below. Plaintiff is investigating these facts and will amend to provide further specifics as discovery permits.

24. Plaintiff is further informed and believes, and on that basis alleges, that at or around the time Diamond acquired the Truck and/or at or around the time of Plaintiff's purchase, a

California enforcement agency had cited the Truck or placed an out-of-service order, hold, or non-compliance designation on the Truck for emissions or safety violations (the "Enforcement Designation"). This allegation is made on information and belief, the basis of which includes: (a) the regulatory non-compliance described in paragraphs above; (b) Plaintiff's pending investigation of CARB enforcement records, the National Motor Vehicle Title Information System ("NMVTIS"), Bureau of Automotive Repair smog records, and Department of Motor Vehicles title-history records associated with VIN 4V4NC9EH6EN142206; and (c) the absence of any disclosure of compliance or remediation history accompanying the Sale Documents. Plaintiff is investigating the precise nature, agency, date, and disposition of the Enforcement Designation and will amend to provide further specifics once confirmed.

25. The Defect, the Truck's regulatory non-compliance, the prior owner's pre-sale notice to Diamond, and the Enforcement Designation (collectively, the "Material Facts") were each material to Plaintiff's purchasing decision. Plaintiff would not have purchased the Truck -- and would not have paid the price he paid, on the terms he accepted -- had any of the Material Facts been disclosed.

26. The Material Facts were peculiarly within Diamond's knowledge and were not reasonably ascertainable by Plaintiff through ordinary inspection or publicly available records at the time of sale. Plaintiff lacked dealer-level access to vehicle intake reports, prior-owner trade-in disclosures, internal inspection notes, or regulatory enforcement databases; Plaintiff could not have confirmed any of the Material Facts at the time of sale through any inspection, test drive, or public records check available to a retail purchaser.

C. Affirmative Representations Made by Diamond

27. In connection with inducing Plaintiff to purchase the Truck, Diamond, acting through its sales agents, finance personnel, and licensed dealer representatives whose specific identities

are presently unknown to Plaintiff but known to Diamond and Alpine and ascertainable through Diamond's and Alpine's own employment, payroll, sales, and finance records (collectively, the "Diamond Agents"), made the following affirmative representations to Plaintiff at and in connection with the April 4, 2023 transaction:

(a) That the Truck was being sold as a commercial-grade diesel semi-truck suitable and lawful for use in commercial freight operations, including operations in California;

(b) That Diamond was a licensed and authorized commercial truck dealer offering for sale a vehicle that was as represented and described in Diamond's listings, advertisements, and the Sale Documents;

(c) That the Truck, as identified by VIN 4V4NC9EH6EN142206 and described in the Retail Buyer's Order, was the vehicle being sold and was in the condition reflected in the Sale Documents;

(d) That the Truck would lawfully be titled and registered for operation in California, as evidenced by Diamond's preparation and processing of California DMV titling paperwork, Diamond's collection of California registration fees, and Diamond's acceptance of a California-notarized Power of Attorney to act on Plaintiff's behalf at the California DMV;

(e) That Diamond was complying with its statutory duty under California Vehicle Code section 24007 not to deliver a vehicle that did not meet applicable equipment, emissions, and safety standards; and

(f) That the price stated in the Retail Buyer's Order accurately reflected the value and condition of the Truck as represented.

28. These representations were made by the Diamond Agents in person at Diamond's premises, in writing in the Sale Documents, and through Diamond's pre-sale advertising, listings, and dealer disclosures. The Diamond Agents who made these representations included, without limitation, the salesperson who handled the April 4, 2023 transaction with Plaintiff and the finance manager or dealership representative who prepared, presented, and executed the Retail Buyer's Order, the GAP Addendum, the Power of Attorney, and related Sale Documents. Plaintiff has identified each such person by role and function based on the documents in his possession; Plaintiff has not been able to identify each by full name because Diamond's signatures, initials, and dealer codes on the Sale Documents are partially illegible or use abbreviations and initials, and Plaintiff lacks access to Diamond's and Alpine's internal employment records. The full names of the Diamond Agents are within Diamond's and Alpine's exclusive possession and control and will be ascertained through discovery.

29. Each of the foregoing representations was false, or rendered misleading by Diamond's failure to disclose the Material Facts, in that the Truck was not lawful for commercial operation in California, was not in the condition reflected in the Sale Documents, did not comply with applicable California equipment and emissions standards, and did not have the value reflected in the price.

D. Mechanical Failure and Resulting Harm

30. Shortly after Plaintiff's purchase, while Plaintiff was operating the Truck on a commercial route under a Lease-On Owner Operator Agreement, the Truck experienced a catastrophic emissions and engine-derate failure: it entered limp mode, emitted excessive black smoke, lost power, and became incapable of exceeding approximately 35 miles per hour. This failure pattern is the characteristic and predictable manifestation of the Defect and is consistent with a pre-existing, undisclosed DEF/SCR system failure that had been previously identified to

Diamond before resale.

31. As a direct result, the Truck was rendered commercially unusable and unsafe for highway operation.

E. Damages

32. As a direct and proximate result of Diamond's conduct, Plaintiff has suffered, and continues to suffer, substantial economic damages, including without limitation the following documented and presently-quantifiable amounts:

(a) $12,345.10 -- deposit paid under the Retail Buyer's Order;

(b) $1,895.00 -- GAP enrollment charge under the GAP Addendum;

(c) $3,442.00 -- DMV and registration fees;

(d) $1,197.34 -- paid to Brannon Tire for towing/repair;

(e) $450.00 -- paid to Golden Empire Towing;

(f) $800.00 -- paid to Mobile Will's Repair;

(g) $5,000.00 -- paid to Almaraz Diesel Repairs;

(h) Additional storage, insurance, and related expenses associated with the Truck; and

(i) Financed-payment exposure on the third-party loan procured in connection with the sale.

33. The subtotal of Plaintiff's documented direct out-of-pocket losses identified in subparagraphs (a) through (g) above is approximately $25,129.44, exclusive of additional storage, insurance, financing, lost income, and prejudgment interest.

34. At the time of purchase, Plaintiff had secured or was actively pursuing commercial hauling contracts, including through Amazon Relay, with reasonably projected net weekly earnings of approximately $1,800. Due to the Truck's failure and Plaintiff's resulting inability to perform, Plaintiff has suffered lost net commercial income of not less than approximately $46,800 to date, with continuing losses according to proof at trial.

35. Plaintiff was unable to mitigate these losses by renting or purchasing a replacement commercial vehicle because his available capital was exhausted by the down payment, registration fees, and emergency repair and towing costs incurred on the subject Truck -- which immediate financial depletion was itself a foreseeable consequence of Diamond's conduct.

F. Discovery of Defendants' Wrongdoing (Tolling)

36. Plaintiff did not discover, and could not have discovered through the exercise of reasonable diligence, the facts constituting Diamond's fraud and concealment until well after the Truck's mechanical failure. Although the Truck's mechanical failure became apparent within months of purchase, the mechanical failure alone did not put Plaintiff on inquiry notice that Diamond had pre-sale knowledge of the Defect, that the prior owner had specifically disclosed the Defect to Diamond, that the Truck had been the subject of an Enforcement Designation, or that Diamond had violated California dealer-disclosure law.

37. Following the Truck's failure, Plaintiff reasonably believed -- consistent with how reasonable retail purchasers regard mechanical breakdowns in used commercial vehicles -- that he was facing an unfortunate post-sale repair issue rather than a fraud. Plaintiff diligently pursued repair efforts, paying multiple repair vendors and seeking diagnosis and remediation in good faith over an extended period before the scope, severity, and pre-sale character of the Defect became apparent.

38. Plaintiff first developed actual or reasonable suspicion that Diamond had pre-sale knowledge of the Defect, and that the Defect was not a post-sale random failure but rather a pre-existing concealed condition, on or about a date within the one-year period immediately preceding the filing of the original Complaint, when, in the course of his investigation: (a) the cumulative and unsuccessful repair history confirmed that the failure was systemic and pre-existing rather than a random post-sale event; (b) Plaintiff began to investigate Diamond's intake and resale practices and the Truck's pre-sale history; and (c) Plaintiff began to access vehicle history, regulatory, and enforcement records that suggested Diamond's pre-sale awareness of the Truck's regulatory non-compliance.

39. Plaintiff is a self-represented commercial driver without legal training. Plaintiff exercised reasonable diligence under the circumstances by: (a) attempting in good faith to repair the Truck; (b) consulting with diesel repair professionals; (c) investigating the Truck's history through publicly available channels; (d) seeking regulatory records from California enforcement agencies; and (e) initiating legal action as soon as the facts constituting Diamond's wrongdoing became reasonably apparent.

40. The facts constituting Diamond's pre-sale knowledge -- including specifically the prior-owner disclosure to Diamond, Diamond's intake records, and the Enforcement Designation -- remain peculiarly within Diamond's and Alpine's possession and the possession of third parties (the prior owner, the lender, and the regulatory agencies) and were not, and could not have been,

ascertained by Plaintiff at the time of sale or upon initial breakdown through the exercise of reasonable diligence.

41. To the extent any cause of action would otherwise be untimely, Plaintiff invokes the discovery rule, the doctrine of fraudulent concealment, and equitable tolling. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797; *Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926; *Aryeh v. Canon Business Solutions, Inc.* (2013) 1 Cal.5th 1185.)

G. Notice of Rescission and Offer to Restore

42. Plaintiff hereby gives notice of rescission of the Truck purchase transaction pursuant to Civil Code sections 1689 and 1691. This First Amended Complaint constitutes a notice of rescission served promptly upon Plaintiff's discovery of the facts giving rise to the right of rescission, and is filed pursuant to Civil Code section 1693, which permits service of the notice and offer through the pleading.

43. Plaintiff offers to restore to Diamond and Alpine, upon their receipt and tender of full restitution of all consideration paid by Plaintiff (including down payment, financing-related amounts, registration and DMV fees, and related charges), everything of value that Plaintiff has received from Diamond which Plaintiff is capable of returning, including the Truck in its present condition.

44. To the extent the Truck has been damaged, encumbered, depreciated, or otherwise diminished in value as a result of (a) Diamond's wrongful conduct, (b) the Defect itself, (c) the third-party financing facilitated by Diamond, or (d) circumstances beyond Plaintiff's control, restoration of the Truck in its original condition is excused under Civil Code section 1693, and Plaintiff requests that the Court adjust the relief between the parties so as to do substantial justice.

H. Post-Filing Corporate Rebrand to Alpine Truck Sales, Inc.

45. Plaintiff filed his original Complaint in this action on February 13, 2026. Following filing, Plaintiff caused the original Summons and Complaint to be tendered to the Stanislaus County Sheriff for personal service upon Diamond Truck Sales, Inc., directed to the person previously designated with the California Secretary of State as Diamond's agent for service of process, at Diamond's principal California place of business located at 1201 South Soderquist Road, Turlock, California 95380.

46. After two unsuccessful attempts at service, the Sheriff advised Plaintiff that the named agent for service of process was no longer the proper person at that address. Plaintiff thereafter discovered that, during the pendency of this action, Diamond is undergoing or has undergone a corporate rebranding to "Alpine Truck Sales, Inc." Sheran Osmani -- a member of the same Osmani family that controls Diamond -- is now publicly identified as Alpine's point of contact and, on information and belief, as Alpine's agent for service of process.

47. Alpine operates from the same four physical locations historically associated with Diamond -- 1201 South Soderquist Road, Turlock, California; 7156 Goldenstate Highway, Bakersfield, California; 5201 Bridge Street, Fort Worth, Texas; and 480 Peachoid Road, Gaffney, South Carolina. Alpine continues Diamond's identical commercial-truck-sales business, holds itself out publicly as a continuation of Diamond's business of "over 45 years" of trusted service, and continues to use Diamond's prior telephone numbers, web infrastructure, social-media properties, and dealership goodwill. On information and belief, Alpine and Diamond share substantially identical management, ownership, employees, customer relationships, and inventory.

48. The rebrand occurred during the pendency of this action and after Plaintiff initiated efforts to effect personal service on Diamond. To the extent the rebrand is accompanied by any

transfer of Diamond's assets, goodwill, customer relationships, or business opportunities to Alpine without receipt by Diamond of reasonably equivalent value in exchange, with actual or constructive intent to hinder, delay, or defraud Diamond's present and future creditors -- including Plaintiff -- such transfer is voidable under the Uniform Voidable Transactions Act (Civ. Code § 3439 et seq.) and is independently actionable. The contemporaneous timing of the rebrand with the pendency of this action is, on information and belief, evidence of such intent. (See Civ. Code § 3439.04, subd. (b).)

49. For all of the foregoing reasons, and as further alleged in paragraph 10 above, Alpine is liable to Plaintiff for each of the claims asserted herein on each of the alternative theories pleaded therein.

V. CAUSES OF ACTION

FIRST CAUSE OF ACTION

(Fraudulent Concealment -- Against All Defendants)

50. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

51. Diamond had a duty to disclose the Material Facts to Plaintiff because: (a) Diamond had exclusive or superior knowledge of the Material Facts not accessible to Plaintiff; (b) Diamond made partial representations about the Truck's condition, suitability, and lawful operability that were misleading without disclosure of the Material Facts; (c) Diamond owed Plaintiff statutory duties of disclosure as a licensed California motor vehicle dealer under California Vehicle Code section 24007 and related provisions; and (d) Diamond actively concealed the Material Facts from Plaintiff through its omissions in the Sale Documents and its

conduct surrounding the sale. (See *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336-337; *Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285; Civ. Code § 1710, subd. (3).)

52. Diamond intentionally concealed and failed to disclose the Material Facts with the intent to defraud Plaintiff and to induce Plaintiff to purchase the Truck and pay funds that Plaintiff would not have paid had the Material Facts been disclosed.

53. Plaintiff was unaware of the Material Facts and would not have acted as he did had he been aware of them. Plaintiff justifiably relied on Diamond's silence and on the implied representation, arising from that silence, that no material adverse facts existed concerning the Truck's condition, suitability, lawful operability, or regulatory status.

54. As a direct and proximate result of Diamond's fraudulent concealment, Plaintiff has been damaged in an amount to be proven at trial, including the damages itemized in Section IV.E above.

55. Diamond's conduct was intentional, malicious, fraudulent, and oppressive, undertaken with a conscious disregard of Plaintiff's rights, and was committed, authorized, or ratified by an officer, director, or managing agent of Diamond, including without limitation Diamond's general manager, sales manager, finance manager, and/or other corporate officer or managing agent with substantial discretionary authority over Diamond's sales practices, vehicle intake, and dealer-disclosure policies. (See Civ. Code § 3294, subd. (b); *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563.) Plaintiff is informed and believes, and on that basis alleges, that Diamond's policies and practices regarding the resale of trucks with known regulatory non-compliance were established, authorized, or ratified at the corporate or managing-agent level, and that the Diamond Agents who handled the April 4, 2023 transaction acted in conformity with such corporate-level policies and practices. Plaintiff seeks punitive and exemplary damages pursuant to Civil Code section 3294. Alpine is liable for these damages under the alternative theories pleaded in

paragraph 10 above.

SECOND CAUSE OF ACTION

(Intentional Misrepresentation -- Against All Defendants)

56. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

57. Diamond, acting through the Diamond Agents, made the affirmative representations identified in Section IV.C above. Each representation was false at the time it was made because the Truck was not, in fact, lawful for commercial operation in California, was not in the condition represented, did not comply with applicable California equipment and emissions standards, and was not as represented in Diamond's listings and the Sale Documents.

58. Diamond knew at the time of each representation that the representation was false, or made the representation recklessly and without regard for its truth, because Diamond had been informed by the prior owner of the Defect, knew of the Truck's regulatory non-compliance, and (on information and belief) knew of the Enforcement Designation.

59. Diamond made the representations with the intent that Plaintiff rely on them in deciding to purchase the Truck and pay the consideration reflected in the Sale Documents.

60. Plaintiff justifiably relied on the representations. Plaintiff's reliance was reasonable in light of Diamond's licensure as a California motor vehicle dealer, Diamond's superior position and access to information about the Truck, and Diamond's preparation of California titling and registration paperwork representing the Truck as suitable for California operation.

61. As a direct and proximate result of the misrepresentations and Plaintiff's reliance thereon, Plaintiff has been damaged in an amount to be proven at trial, including the damages itemized in Section IV.E above.

62. Diamond's conduct was intentional, malicious, fraudulent, and oppressive, undertaken with a conscious disregard of Plaintiff's rights, and was committed, authorized, or ratified by an officer, director, or managing agent of Diamond, justifying an award of punitive and exemplary damages pursuant to Civil Code section 3294. Alpine is liable for these damages under the alternative theories pleaded in paragraph 10 above.

THIRD CAUSE OF ACTION

(Negligent Misrepresentation -- Against All Defendants)

63. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

64. Pleaded in the alternative to the Second Cause of Action: To the extent Diamond did not have actual knowledge of the falsity of the affirmative representations identified in Section IV.C above, Diamond made each such representation without reasonable grounds for believing it to be true.

65. Diamond owed Plaintiff a duty to exercise reasonable care in making representations about the Truck's condition, suitability, lawful operability, and regulatory status because Diamond is a licensed California motor vehicle dealer holding itself out as a sophisticated commercial truck merchant, in privity with Plaintiff, who Diamond knew would rely on the representations in deciding whether to purchase the Truck and at what price. (See *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370; Civ. Code §§ 1709, 1710, subd. (2).)

66. Diamond made the representations with the intent that Plaintiff rely on them. Plaintiff did rely justifiably on the representations to his detriment, as set forth above, and has suffered damages as a direct and proximate result in an amount to be proven at trial.

67. This Cause of Action is timely. The discovery-rule and tolling allegations in Section IV.F are incorporated by reference. Plaintiff's reasonable inquiry into whether Diamond's affirmative representations had been made without reasonable grounds for belief was inseparable from his investigation of Diamond's pre-sale knowledge described above; until Plaintiff developed reasonable suspicion that Diamond had pre-sale information about the Defect, Plaintiff could not have known and did not know that Diamond's affirmative representations were made without reasonable grounds for believing them true.

FOURTH CAUSE OF ACTION

(Breach of Contract -- Against Defendants Diamond and Alpine)

68. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

69. Plaintiff and Diamond entered into a valid and enforceable written contract for the sale of the Truck on or about April 4, 2023, evidenced by the Retail Buyer's Order, the GAP Addendum, the Power of Attorney, and related Sale Documents (collectively, the "Contract"). The Contract identified the Truck by year, make, model, and VIN, set the price at $26,900.00 (with total charges of $27,092.75), specified the down payment and financing terms, and obligated Diamond to deliver the identified Truck in conformity with the description, applicable law, and the parties' reasonable understanding. Alpine is bound by, and liable on, the Contract under the alternative theories pleaded in paragraph 10 above.

70. Diamond breached the Contract by, among other things: (a) delivering a Truck that did not conform to the description in the Sale Documents because it suffered from the Defect and was non-compliant with California emissions law; (b) delivering a Truck that could not lawfully be operated in California for the commercial purpose for which it was sold; (c) delivering a Truck that was not in conformity with the implied terms of merchantability and fitness implicit in the parties' agreement; and (d) failing to disclose the Material Facts in violation of statutory dealer-disclosure obligations incorporated into the Contract by operation of law.

71. Plaintiff performed all conditions, covenants, and obligations required of him under the Contract -- including payment of the deposit, execution of the Power of Attorney and related paperwork, and arrangement of insurance and registration -- or his performance was excused by Diamond's prior breach.

72. Plaintiff timely notified Diamond of Diamond's breach within a reasonable time after Plaintiff discovered or should have discovered the breach, in compliance with Commercial Code section 2607, subdivision (3)(a). To the extent any earlier formal written notice is asserted to be required, this First Amended Complaint and Plaintiff's pre-litigation communications and conduct in seeking repair, refund, and remedy collectively satisfied the notice requirement.

73. As a direct and proximate result of Diamond's breach, Plaintiff has suffered damages in an amount to be proven at trial, including the damages itemized in Section IV.E above and consequential and incidental damages recoverable under Commercial Code sections 2714 and 2715, including lost commercial income.

74. Plaintiff is entitled to prejudgment interest on liquidated economic losses at the legal rate from the date of loss pursuant to Civil Code section 3287, subdivision (a).

FIFTH CAUSE OF ACTION

(Breach of Implied Warranty of Merchantability --

Cal. Comm. Code § 2314 -- Against Defendants Diamond and Alpine)

75. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

76. Diamond is a "merchant" with respect to commercial trucks within the meaning of Commercial Code section 2104. Diamond regularly deals in commercial trucks, holds itself out as having knowledge or skill peculiar to such goods, and is licensed and engaged in the commercial truck sales business. Alpine continues that same merchant business and stands in Diamond's shoes for purposes of this cause of action under the alternative theories pleaded in paragraph 10 above.

77. By reason of Diamond's status as such a merchant, the sale of the Truck to Plaintiff was accompanied by an implied warranty of merchantability under Commercial Code section 2314.

78. Diamond breached the implied warranty of merchantability because the Truck: (a) would not pass without objection in the trade under the contract description; (b) was not fit for the ordinary purposes for which commercial diesel semi-trucks are used, namely lawful commercial freight operation; (c) did not conform to the description on the label and Sale Documents because of the concealed Defect and regulatory non-compliance; and (d) was not adequate to be lawfully operated in California, which was the foreseeable place of operation.

79. Plaintiff seasonably notified Diamond of the breach within a reasonable time after

Plaintiff discovered or should have discovered the breach, satisfying Commercial Code section 2607, subdivision (3)(a).

80. To the extent any "as-is" disclaimer or warranty exclusion is contained in the Sale Documents, such disclaimer is ineffective and unenforceable for one or more of the following reasons: (a) it is not conspicuous within the meaning of Commercial Code sections 1201, subdivision (b)(10), and 2316, subdivision (2); (b) it is contradicted by Diamond's express affirmative representations described in Section IV.C; (c) it cannot disclaim Diamond's statutory duty under California Vehicle Code section 24007 not to deliver a vehicle that does not meet applicable equipment and emissions standards (and a contractual disclaimer cannot override an unwaivable statutory duty under Civil Code section 1668); (d) it is unconscionable under Commercial Code section 2302 in light of Diamond's pre-sale knowledge of the Defect and concealment of the Material Facts; and (e) it cannot exclude liability for fraud or concealment, which it does not purport to disclaim.

81. As a direct and proximate result of Diamond's breach of the implied warranty of merchantability, Plaintiff has suffered damages in an amount to be proven at trial, including the damages itemized in Section IV.E above and consequential and incidental damages recoverable under Commercial Code sections 2714 and 2715.

SIXTH CAUSE OF ACTION

(Violation of Unfair Competition Law,

Bus. & Prof. Code § 17200 et seq. -- Against All Defendants)

82. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

83. Business and Professions Code section 17200 prohibits any unlawful, unfair, or fraudulent business act or practice. Diamond's conduct as alleged herein constitutes each of the three independently actionable prongs. Alpine is liable under this Cause of Action both as a successor to Diamond on the alternative theories pleaded in paragraph 10 above and, independently, for its own ongoing business practices to the extent they continue to deceive consumers regarding the Diamond/Alpine corporate identity and to the extent they reflect a transfer designed to insulate Diamond's assets from claims like Plaintiff's.

Unlawful Prong

84. Diamond's conduct is unlawful in that it violates, without limitation, the following statutes and regulations, each of which serves as an independent predicate under the unlawful prong:

(a) California Vehicle Code section 24007 (dealer prohibition on delivery of vehicles not in compliance with applicable equipment, emissions, and safety standards);

(b) California Vehicle Code section 11713, subdivision (a) (dealer prohibition on making untrue or misleading statements);

(c) California Vehicle Code section 27156 (prohibitions concerning emissions devices);

(d) California Health and Safety Code section 43000 et seq. (motor vehicle pollution control);

(e) California Code of Regulations, title 13, section 2025 (Truck and Bus

Regulation);

(f) California Code of Regulations, title 13, sections 1956.8 and 2020 et seq. (heavy-duty diesel emissions compliance);

(g) California Civil Code section 1710 (deceit);

(h) 16 C.F.R. Part 455 (Federal Trade Commission Used Motor Vehicle Trade Regulation Rule), to the extent applicable;

(i) The Federal Clean Air Act, 42 U.S.C. § 7401 et seq.; and

(j) The Uniform Voidable Transactions Act, Civil Code section 3439 et seq., to the extent that the Diamond-to-Alpine rebrand involved any voidable transfer of assets, goodwill, or business opportunities.

Unfair Prong

85. Diamond's conduct is unfair within the meaning of Business and Professions Code section 17200 because it caused substantial injury to Plaintiff that Plaintiff could not reasonably have avoided and that is not outweighed by any countervailing benefits to consumers or competition. The injury includes Plaintiff's purchase of, and immediate financial commitment to, a non-conforming and non-compliant commercial vehicle that Plaintiff could not lawfully operate. Diamond's conduct also offends established public policy and is immoral, unethical, oppressive, and unscrupulous. (See *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163.)

Fraudulent Prong

86. Diamond's conduct is fraudulent within the meaning of Business and Professions Code section 17200 because it is likely to deceive reasonable consumers, including Plaintiff, into believing that they were purchasing a commercial truck that was lawful, compliant, and fit for its intended commercial use, when in fact the Truck suffered from the concealed Defect and was non-compliant with California emissions law. The Diamond/Alpine rebrand, to the extent it is being held out to the public in a manner that obscures the continuity of the Diamond business and any continuing exposure of that business to claims by injured customers, is independently likely to deceive reasonable consumers.

87. Plaintiff suffered injury in fact and lost money or property as a direct result of Diamond's conduct, including the damages itemized in Section IV.E above, and accordingly has standing under Business and Professions Code section 17204.

88. Plaintiff seeks restitution of all monies paid in connection with the transaction, disgorgement of Diamond's and Alpine's ill-gotten gains, public injunctive relief restraining Diamond and Alpine from continuing to engage in the unlawful, unfair, and fraudulent practices alleged herein (including any continuation of the Diamond-to-Alpine rebrand transaction in a manner designed to insulate Diamond's assets from claims by Plaintiff and similarly situated consumers), and all other relief permitted by Business and Professions Code section 17200 et seq.

SEVENTH CAUSE OF ACTION

(Rescission and Restitution -- Against Defendants Diamond and Alpine)

89. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

90. Plaintiff is entitled to rescind the Truck purchase transaction pursuant to Civil Code section 1689, subdivision (b), on each of the following independent grounds: (a) subdivision (b)(1), because Plaintiff's consent was given by mistake or obtained through fraud or undue influence by Diamond; and (b) subdivision (b)(5), because the consideration furnished by Diamond -- a non-compliant and unusable commercial truck -- has wholly failed to materialize in any commercial purpose.

91. Plaintiff has given prompt and effective notice of rescission, and has made an effective offer to restore everything of value received, as set forth in Section IV.G above. This First Amended Complaint constitutes both notice of rescission and an offer to restore pursuant to Civil Code sections 1691 and 1693.

92. To the extent restoration of the Truck in its original condition is impossible, impracticable, or excused, Plaintiff requests that the Court adjust the equities between the parties pursuant to Civil Code section 1693 to do substantial justice, including by accounting for any diminished value caused by Diamond's wrongful conduct, the Defect itself, or the third-party financing facilitated by Diamond.

93. Plaintiff seeks restitution from Diamond and Alpine, jointly and severally, of all monies paid in connection with the transaction, including without limitation the deposit, financed amounts paid to date, registration and DMV fees, GAP enrollment, towing and repair charges, storage, insurance, and other out-of-pocket costs.

94. Money damages alone cannot fully restore the parties to their pre-contract positions or unwind the transaction, including its ongoing financing consequences. Plaintiff therefore seeks rescission together with consequential damages, restitution, and ancillary relief necessary to accomplish full restoration.

EIGHTH CAUSE OF ACTION

(Declaratory Relief -- Against All Defendants)

95. Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

96. An actual, present, and justiciable controversy has arisen and now exists between Plaintiff, Diamond, and Alpine concerning their respective rights, duties, and obligations arising from the Contract and the Truck purchase transaction, requiring judicial declaration pursuant to Code of Civil Procedure section 1060. The controversy includes, without limitation:

(a) Whether any "as-is" disclaimer, integration clause, warranty disclaimer, or limitation-of-remedies provision contained in the Sale Documents is enforceable in light of Diamond's fraud, concealment, statutory violations, and breach of statutory duty under California Vehicle Code section 24007;

(b) Whether any predispute arbitration provision, class-action waiver, or jury-waiver clause that may be contained in the Sale Documents is enforceable in light of Diamond's fraud in the inducement and the unconscionability of such provisions in this context;

(c) Whether the Contract is voidable and unenforceable due to Diamond's fraudulent conduct and material non-disclosures, and whether Plaintiff is entitled to rescind the transaction;

(d) The respective rights and obligations of the parties going forward with respect to the Truck's title, registration, and disposition, including but not limited to the

obligations to de-title or transfer title in connection with rescission;

(e) Diamond's and Alpine's prospective obligations, if any, to Plaintiff and the third-party lender in connection with unwinding the transaction and the associated financing; and

(f) Whether Alpine Truck Sales, Inc. is liable for the obligations of Diamond Truck Sales, Inc. as alleged in this First Amended Complaint, on the alternative theories of name change, mere continuation, de facto merger, express or implied assumption, fraudulent transfer under the Uniform Voidable Transactions Act, and/or alter ego.

97. A judicial declaration is necessary and appropriate at this time so that Plaintiff, Diamond, and Alpine may ascertain their rights and duties and avoid further injury and uncertainty. Without such a declaration, the parties will continue to dispute the enforceability of the Sale Document terms, the appropriate disposition of the Truck and related obligations, and the scope of Alpine's liability for Diamond's conduct.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment, jointly and severally, against Defendants Diamond Truck Sales, Inc., Alpine Truck Sales, Inc., and Does 1 through 20 as follows:

(A) For rescission of the Truck purchase transaction;

(B) For restitution of all monies paid in connection with the transaction, including without limitation the deposit, financed amounts paid to date, registration and DMV fees, GAP enrollment, towing and repair charges, storage, insurance, and related out-of-pocket costs;

(C) For compensatory damages according to proof at trial;

(D) For consequential damages, including without limitation lost commercial income and lost business opportunities, according to proof at trial;

(E) For incidental damages under Commercial Code section 2715;

(F) For punitive and exemplary damages pursuant to Civil Code section 3294 according to proof at trial;

(G) For restitution, disgorgement, and public injunctive relief under Business and Professions Code section 17200 et seq., including injunctive relief restraining further conduct of any voidable transfer between Diamond and Alpine designed to insulate assets from this and similar claims;

(H) For declaratory relief as set forth in the Eighth Cause of Action, including a declaration that Alpine Truck Sales, Inc. is liable for the obligations of Diamond Truck Sales, Inc. as alleged herein;

(I) For an order under Civil Code section 3439.07 setting aside any voidable transfer between Diamond and Alpine, attaching the assets transferred or their proceeds, and/or appointing a receiver, as may be necessary to satisfy any judgment entered in this action;

(J) For costs of suit incurred herein;

(K) For prejudgment interest on liquidated economic losses from the dates of loss

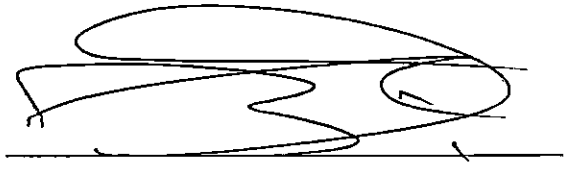
pursuant to Civil Code section 3287, subdivision (a), and post-judgment interest as permitted by law; and

(L) For such other and further relief as the Court deems just and proper.

VII. DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

DATED: May 11, 2026



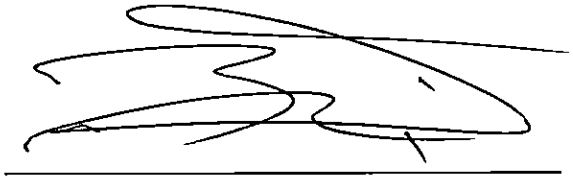
BRENDAN NGWA NFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com

VERIFICATION

I, Brendan Ngwa Nforbi, am the Plaintiff in this action. I have read the foregoing First Amended Complaint and know the contents thereof. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters, I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 11, 2026, at Stockton, California.



BRENDAN NGWA NFORBI